TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, OCTOBER 13 , 2021
6:30 PM

1. **Call to order**

   Mayor Goette called the meeting to order at 6:30 pm

   Those in attendance were as follows: Mayor Goette and Council Members: Dana Williams, Dave Crenshaw, Larry Ward, Ed Drohan III, John Henry and Brooks Barbaree. Staff in attendance: Town Administrator, Bob Milie; Town Attorney, Charlie Barrow; Police Chief, Sean Clayton; Fire Chief, Andrew Bateman; Public Works Manager, Oscar Crosby; Acct Payable/Utilities Billing Manager; Town Clerk/Zoning Administrator, Deatre Denion.

   Finance Administrator, Shelly Jameson was not in attendance.

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

3. **Approval of Meeting Agenda**

   Mayor Goette stated item 6, Blue Line Contract was removed and she needed a motion to approve the amended agenda. Council Member Ward made the motion with a second by Council Member Drohan. The motion passed unanimously.

4. **Approval of Minutes from Previous Meeting**:
   Minutes of September 8, 2021

   Mayor Goette asked for a motion and a second to approve the September 8th meeting minutes. Council Member Ward made the motion with a second from Council Member Barbaree. Town Administrator Milie stated item 15 needed to be changed to 149,000, not 49,000. Council Member Ward approved the correction in the motion with a second by Council Member Barbaree. The motion passed unanimously.

5. **Proclamation for Retired Educator's Day**

   Mayor Goette received a request from the Local Chatham Retired Educator Association for proclamations for Retired Educator's Day. Mayor Goette read the proclamation and asked Council for approval. Council Member Crenshaw made the motion to approve with a second by Council Member Ward.

6. **Approval of Parade Permit for Alee Temple on November 13, 2021**

   Mayor Goette asked if anyone from Alee Temple was in the audience. They were not but Council Member Williams stated he is a member and this parade is the same as they have done in the past. It was moved to Savannah but they wish to come back to Thunderbolt this year. The parade will be only on River Drive starting at Falligant ends at Tubbys on River Drive. **Council Member Ward made the motion to approve the parade**

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permit with second from Council Member Henry. Council Member Williams recused himself. Council Member Ward stated Alee Temple asked for a waiver of the permit fee as well. **Council Member Ward made the motion to approve the permit and the waiver with a second by Council Member /Crenshaw. The motion passed unanimously.**

7. **Discussion on Sign Requirements**

Town Administrator Milie stated it is political time. If a sign is on town property or obviously in the right of way, i.e. middle of Victory Drive, Code Enforcement will remove them. Council Member Henry stated he would not like to see uniform officers pulling signs but Code Enforcement should be enforcing the ordinance. Council Member Crenshaw asked about state law for damaging signs or intimidation. Town Attorney Barrow stated that is criminal not ordinance related. Council Member Crenshaw brought up the difference between right of way and utilities easement. Council Member Drohan stated the ordinance is broad on all kinds of signs. He suggested the Council should do an amendment for political signs stating a number of feet off the street. Town Attorney Barrow suggested if we are going to make this change it would not happen until after the election. Mayor Goette stated it is not just political signs. Council Member Crenshaw stated there have been complaints about signs and asked Council Member Barbaree to speak to one of the complaints. Council Member Barbaree stated he was approached by a neighbor expressing concern about multiple signs in her yard. The neighbor felt pressured to put another sign in the yard when she already had a sign from another candidate. Jan Yarborough, 24 Bonaventure Road, and James Lavin, candidate for Council, asked if the Town had a sign ordinance. Town Administrator Milie explained there seems to be some confusion on enforcement but there is an ordinance. The second issue being touched on by Council is treatment of citizens putting signs in their yards; Council Member Crenshaw stated there have been complaints from businesses too. Owners who do not live in the Town and do not want to get into the politics of Thunderbolt. Council Member Ward stated any political candidate has to ask the citizens to put signs on their property, not on the right-a-way. What has been happening is candidates are placing signs without permission. Council Member Williams stated everyone who has his sign has given permission. Some of his signs have been moved, pulled and/or thrown away. Council Member Crenshaw stated it is a misdemeanor to vandalize signs and is a fine of $1,000 per occurrence.

8. **Discussion on Day Care Lease Objections**

Council Member Crenshaw stated the citizen whom submitted the objection for having a day care was Mayor Goette's niece and orchestrated by the aunt. Mayor Goette should have made public the relationship they have. Mayor Goette stated they have lived here longer than both her and Council Member Crenshaw and should have the right to state their concerns. Council Member Drohan stated anyone has the right to show a concern, but understand their concerns does not necessarily mean there will be a change in the decision made. They first have to prove the concerns are valid and if there are valid a solution is needs to acknowledge the issue. Jan Yarbrough asked about the text amendment for Victory Drive District (VDD). Town Clerk/Zoning Administrator Denion explained it is not just a day care the Town is looking to add use(s) to the VDD. The Planning and Zoning and Council are looking for other types of businesses that could utilize the old library or any location in the VDD.

9. **Town Administrator Report:** Town Administrator, Bob Milie

Town Administrator Milie provided highlights from his report: Police is collecting data about speeding along Bannon Dr. Council Member Drohan asked about the meeting with Bannon Drive Neighborhood. Town Administrator Milie stated there will be a meeting for the neighbors on Bannon Drive at 6 pm. Geneva Golden, 3126 Gilbert St, stated the mobile speed sign is in front of her house. This information should be for all citizens in Thunderbolt. The Town needs to revive the Thunderbolt Neighborhood Improvement Association. Council Member Williams explained this is one person who lives on Bannon Street that requested the meeting and invited his neighbors.

Town Administrator Milie stated while attending attended a Finance Class the topic of HB 17 was discussed. If Thunderbolt do not have an ordinance for hotel/motel taxes the county will collect the money.

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Phase II of an application for a Fiscal Relief Grant seeking approximately 5 million dollars to replace / repair the force main to President Street is being written. There will be approximately a 1.4-million-dollar match. If awarded the Town will use 1 million from APRA money and $400,000 from reserves.

Phase II of Solar assessment has begun to determine viability of Solar energy on Town buildings first, then possibly move on a program being implemented by Savannah to install Solar if viable and with Council approval.

QS1 – Finance Administrator Jameson has gone for QS1 training this week. Hopefully, have a detailed report concerning the software possibilities next month.

Recycling – Town Administrator Milie and Atlantic Waste discontinued curbside recycling at Regency Trailer Park due to continuous contamination causing the entire truck to be contaminated. Council Member Drohan stated he understands the position staff has taken but did want to point out the owner is accountable as well as those leasing. The trash and recyclable containers are not being pulled back and code enforcement should be enforcing the ordinance there.

10. **Finance Report**: if available

11. **Department Report –** Written Reports Submitted

by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police
Fire –Fire Chief, Andrew Bateman
Public Works Department – Oscar Crosby, Public Works Manager

Chief Clayton was asked to summarize the Blue Line Contract currently being negotiated. Chief Clayton explains there will be camaras for the school zone around Johnson High School. If someone is going 11 or more over the speed limit, they will be tagged for a fine of $100. If the ticket is not paid, after several notices, they will not be able to renew their tag until it has been paid. Council Member Williams asked if these could be used in the other neighborhoods. Chief Clayton stated they cannot. There are other companies with the ability to do neighborhoods. Council Member Ward asked about fee the Town receives. Chief Clayton explains the Town receives 40%. Council Member Henry asked if the camaras are only during school hours. Chief Clayton states they are 24/7. The speed in the zone changes with school zone activation. Mayor Goette asked him to explain the grace period. There is an advisement and there is a 30 day window. Mr. Gallaher, Bonaventure Rd, asked Town Administrator Milie about what is going to be done with data on speed around town. Long term is a T-splost, if it goes through to cover all roads. If there is an issue, we can address at the same time of resurfacing. Clayton stated 1% have been speeders

Fire Department has had 2 leaks in the roof and there is a mold issue. Staff is working towards an in-house plan to address these issues.

Council Member Crenshaw asked about limits on the aquifer withdrawals. Public Works Manager Crosby stated he will make the switch to Savannah water by mid-November. Town Administrator Milie let Council know that the higher water usage for Town Hall, Nelly and Thompson Park was due to power washing and a leak.

Special Gratitude to Town Hall Administrative Staff – Deatre – Shelly, Katina, Renee – Yoshi – Julie – on their patience and deep digging for data that I am seeking to daily access our operations and prepare the budget

Recognition of Police Chief Sean Clayton for his Police Officer of the Year award from the American Legion Post # 184 for his long-standing service and dedication to the Town of Thunderbolt rising from the rank of Patrol Officer to Chief of Police.
Recognition of Fire Fighter Brooke Dicks for her Fire Fighter of the Year award from the American Legion Post #184 for her commitment to excellence in training and willingness to take on additional projects to better the department.

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Recognition of Fire Chief Andrew Bateman, Fire Fighter Kris Fain, Fire Fighter Mueller, Police Corporal Mike Foran, and Patrol Officer Wilson, whose preparedness and swift actions during a medical crisis that involved resuscitation and overdose intervention resulted in the successful live saving measures of two occupants.

12. **Legal Report – Town Attorney**
    a) Second Reading of the Short-term Rental Ordinance

Town Attorney Barrow stated this is the second reading. There were some minor changes made to the draft ordinance. On page 3 transient needs to be deleted, pg4 registration, top of page 5 recommendation of monthly to daily, change amount 100-150, page 6 change feed to fees. There are some blanks that need to still be filled.

Council Member Crenshaw asked what the current number of STRs in Thunderbolt. Town Administrator Milie stated 66 short term rentals from a host compliance company provided. Town Administrator Milie suggested Council create zones and allow 10% more than 66. Council Member Williams points out Thunderbolt was the only community had a net loss in population in Chatham County.

Kailey Garrison, 2602 Dogwood, asked how the Town counted 66 STRs. Town Administrator Milie explained through a host compliance company. Ms. Garrison asked how would multiple STRs be counted on same parcel. Town Administrator Milie stated one per PIN.

Jan Yarbrough, 24 Bonaventure Rd, asked were the 66 residents and condos? Town Administrator Milie stated the host compliance came up with 66 different listings, no distinction of residents versus condos. Currently the Town STRs is 5% of the residents. Council Member Williams stated some condo associations do not allow STRs. Ms. Yarbrough stated if we do not have an ordinance all the residents could be short-term-rental. We have learned from Tybee and Savannah there are trash issues, water usage and traffic. Ms. Yarbrough recommended strengthening the process in the ordinance. Council Member Crenshaw points out if everyone was a STR, we could not have Council. Ms. Yarbrough suggested each STR has to provide a two scale parking drawing and though the ordinance references Good Neighbor Policy, they should have to comply.

Geneva Golden, 3126 Gilbert St, asked how would you know if there are STR. Town Administrator Milie stated there is no full proof way but the Town would look for those who are advertising. Host Compliance take listed registration with one that pops up. Council Member Crenshaw stated the ordinance requires a sign. Council Member Barbaree stated there is a grey area where someone is just renting a room. Council Member Crenshaw stated there is occupancy requirement in the ordinance.

Ed Drohan III, 3319 Bannon Dr., stated he had no objection STR regulations. He did suggest in regards to art. III sec 6-301 on the intent, promoting tourism should be added. Mr. Drohan asked what is occupation tax? Clerk of Council Denion explained it is same as Business License. Mr. Drohan stated he appreciated not using blight in the ordinance. In his experience people have been respectful and responsible.

James Lavin, 3125 Robertson Ave, asked what is the effect on Thunderbolt by allowing STR. He has concerns with running out of water. What is good for Thunderbolt? If the intent of the ordinance is to identify them, he is not sure that will be effective.

Della Lavin, 3125 Robertson Ave, stated her concerns come under the loophole. What about those that do not use Air BB. Do the STRs have to provide a booklet with rules? Council Member Williams stated we could look at voter registration role and check those without. Council Member Barbaree stated we could look at the homestead exemptions.

Laurie DeVegter, 3212 Center St, stated Chatham County does require a parking layout and this ordinance should as well. She suggested the staff look at tax revenue and stated it is smart to have a balance.

Council Member Williams made the motion to table short term rentals until later date for more research to the questions brought up this evening with a second by Council Member Ward. Council Member Drohan recused himself. Motion passed unanimously.

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Council Member Williams asked Town Attorney Barrow if Council has considered limiting trucks on certain Town streets. Town Attorney Barrow stated it could by done but there would have to be provisions for moving trucks.

13. **Mayor and Council –**
    a) **Water & Sewer Committee – Council Member Drohan**

    Council Member Drohan stated there has been a lot of movement at looking at water and sewer to come up with a more accurate cost of these services. The Town still needs to look at commercial rates. Council Member Drohan asked about the refuse contract. Council Member Crenshaw stated he thought it is annual and the Town has 90 days to cut it off.

14. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal and/or Personnel matters.

    Mayor Goette asked for a motion to move into executive session. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

    Mayor Goette asked for a motion and a second to enter back into the public meeting. **Council Member Ward made the motion with second from Council Member Drohan. The motion passed unanimously.**

    Mayor Goette asked for a motion and a second to adjourn the meeting. **Council Member Ward made the motion with a second by Council Member Drohan. The motion passed unanimously.**

15. **Adjournment:**

    The meeting adjourned at 8:51 pm.

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